

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 01/27/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L23-00256
CASE NAME: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY VS.
CALICARCOMOBILE.COM LLC
*HEARING ON MOTION FOR DISCOVERY DEEM REQUESTS FOR ADMISSIONS ADMITTED
FILED BY: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY
TENTATIVE RULING:

Background

Plaintiff filed, on September 24, 2025, Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration and Memorandum.

Plaintiff also sought fees in the amount of \$400, for attorney's fees (2 hours at \$200/hr), and \$60 for filing fees.

Plaintiff attached the particular facts at issue in their Exhibit A to their Declaration.

Plaintiff attached a proof of service, indicating email service to Defendant's attorney of record on the same date.

Counsel for Defendant, Sonia Arata, withdrew from the case on October 28, 2025.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Defendant is sanctioned in the amount of \$460.

Plaintiff to draw and file Order.

**2. 9:00 AM CASE NUMBER: L23-03486
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. STEPHANIE JIN
*HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO STIPULATION
FILED BY: JPMORGAN CHASE BANK, N.A.
*TENTATIVE RULING:***

Background

Plaintiff has filed, on November 6, 2025, a Motion to Enter Judgment pursuant to a Stipulation under Section 664.6 of the Code of Civil Procedure.

The Stipulation was attached to the Motion, and was also independently filed on November 6, 2025. It was executed by both parties on November 6, 2024.

Analysis

Plaintiff filed a proof of service for the service of the Motion, however, service was effected by mail on an attorney, the Kazerouni Law Group, with a mailing address in Las Vegas, Nevada.

This court has taken judicial notice of the file in this matter, and notices that there is no record of any

attorney ever representing the Defendant.

Defendant signed the Stipulation alone, without representation, and there have been no Substitutions of Attorney on her behalf filed in this case.

No documents have ever been submitted on behalf of the Defendant suggesting that she has representation.

Thus, this court does not find that Defendant was properly notified of this hearing.

Disposition

Motion is continued for 30-60 days for Plaintiff to properly serve Defendant. Plaintiff to provide notice to Defendant of next hearing date.

Plaintiff to file Order.

3. 9:00 AM CASE NUMBER: L24-04232

CASE NAME: CITIBANK N.A. VS. GINO MAYNETTO

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CITIBANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on January 7, 2026, a Motion to Vacate Dismissal and Enter Judgment, under Section 664.6 of the Code of Civil Procedure. The Motion is scheduled for hearing on January 27, 2026.

Notice of the Motion was served on Defendant, via mail service, on January 7, 2026.

The Motion is unopposed.

Analysis

Section 1005 of the Code of Civil Procedure requires notice for a motion hearing of at least 16 court days. January 7, 2026, doesn't pass muster at 13 court days.

Disposition

This Motion will be continued 30-60 days to give Defendant the opportunity to respond.

Plaintiff to file Order and to provide notice of next hearing.

4. 9:00 AM CASE NUMBER: L24-08569

CASE NAME: WELLS FARGO BANK, N.A. VS. ANA GUANZON

***HEARING ON MOTION IN RE: DEF MTN TO COMPEL DEPO ATTEND/TEST OF JASON GILL IN ALT PERSON MOST KNOWLEDGEABLE FILED BY DEF
FILED BY: GUANZON, ANA M**

TENTATIVE RULING:

Disposition

Parties, at the 1/15/26 CMC, indicated the deposition of the witness at issue in this motion would occur on 1/19/26. This court finds this motion to now be moot.

This motion will be dropped from calendar.

5. 9:00 AM CASE NUMBER: L25-01668

CASE NAME: FARIBORZ GHORBAN VS. VICTOR OSORIA

***HEARING ON MOTION IN RE: TO CORRECT CASE CLASSIFICATION FROM LIMITED TO UNLIMITED
FILED BY: GHORBAN , FARIBORZ**

TENTATIVE RULING:

Background

Plaintiff filed, on November 14, 2025, a Motion to modify the classification of the matter from Limited Civil to Unlimited Civil. The Hearing is scheduled for January 27, 2026.

The Motion is unopposed yet there is no proof that notice has been provided to Defendant.

Analalysis

Motion continued for 30 to 60 days for Plaintiff to provide notice to Defendant.

Plaintiff to file Order and notify of Defendant of subsequent hearing date.

6. 9:00 AM CASE NUMBER: L25-03141

CASE NAME: PORTFOLIO RECOVERY ASSOCIATES LLC VS. ERICK OCHOA

***HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION
OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY: PORTFOLIO RECOVERY ASSOCIATES LLC

TENTATIVE RULING:

This matter is no longer on calendar.

7. 9:00 AM CASE NUMBER: L25-08787

CASE NAME: ODK CAPITAL, LLC VS. RESONANCE EXECUTIVE LLC

***HEARING ON MOTION IN RE: TO COMPEL ARBITRATION AMD TO STAY ACTION**

FILED BY: KIMBLE, DANIEL

TENTATIVE RULING:

Background

*Defendant filed a motion to compel arbitration and stay the action.
Plaintiff, on 12/29/25, filed notice of non-opposition and further requested Stay or Dismissal.*

Disposition

*Defendant's Motion is granted.
Case will be dismissed, upon request of Plaintiff.*

**8. 9:00 AM CASE NUMBER: L25-08939
CASE NAME: CAPITAL ONE, N.A. VS. MICHELLE BEN
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT
FILED BY: BEN, MICHELLE Y
*TENTATIVE RULING:***

Background

Defendant filed, on December 8, 2025, a Motion to Set Aside Default, claiming a lack of actual notice under Sections 473(b) and 473.5 of the Code of Civil Procedure.

The Default Judgment was filed November 20, 2025.

Plaintiff filed a timely response.

Analysis

Defendant claims that they were never personally served with the Summons or Complaint, prior to the entry of the default judgment.

Plaintiff filed a Proof of Service, on November 20, 2025, indicating personal service on a Michelle Y. Ben, who confirmed their identity. The service was effected on September 7, 2025, and was completed by a registered process server.

This raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

Moreover, the service was effected at the same address as listed on the account statement for Defendant, a copy of which was included in Plaintiff's response.

Disposition

Defendant's Motion is denied.

Plaintiff to file Order.

9. 9:00 AM CASE NUMBER: L25-13609
CASE NAME: AFSHIN SHAHIDI VS. ALLIED PLUMBING & FIRE SUPPLY
HEARING IN RE: PETITION FOR RELEASE OF PROPERTY LIEN
FILED BY:
TENTATIVE RULING:

Background

Plaintiff filed, on December 22, 2025, a Petition for the Release of a Property Lien. The hearing was scheduled for January 27, 2026.

The Petition is unopposed; however, there is no proof that Plaintiff has served the Defendant with a copy of the Complaint.

Disposition

Hearing will be continued for 60 days for Plaintiff to serve Defendant.

Plaintiff to file Order.

Courtroom Clerk's Session
Add On

10. 9:00 AM CASE NUMBER: MS25-0971
CASE NAME: POETS PROPERTIES, LLC VS. SHANNON WILSON
***DEMURRER / MOTION TO STRIKE HEARING**
FILED BY:
TENTATIVE RULING:

Background

Defendant filed its Demurrer, on January 2, 2026, to the Complaint of Unlawful Detainer, filed on November 12, 2025. The matter was set for hearing on January 27, 2026.

Defendant alleges that Plaintiff fails to state a cause of action and then contends that Plaintiff has not complied with the "Ellis Act," which appears to have been codified in sections 7060 through 7060.6 of the California Government Code.

It is unclear what the Defendant's particular argument is with respect to these statutes, but

Defendant appears to argue either that the rental unit at issue has not been removed from the rental market, or that not all units have been removed from the rental market.

This court will address both arguments, as well as the general argument of a Demurrer that the Complaint fails, generally, to state a cause of action.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685.

In addition, complaints in unlawful detainer matters must meet additional requirements. Such a complaint must demonstrate the method of service of the notice of termination; it must contain attachments such as the notice of termination, as well as a copy of the lease or rental agreement. The complaint must also be verified. *See* Section 1166 of the Code of Civil Procedure.

Section 1946.2 of the California Civil Code permits an owner of residential property to terminate a tenancy of more than 12 months for just cause and provided the owner. The withdrawal of residential property from the rental market, under Section 1946.2(b)(2)(B), qualifies as just cause. The just cause must be stated in the written notice to terminate tenancy.

Sections 7060 through 7060.7 of the California Government Code, allow a defendant to demur or provide an affirmative defense with respect to any violations of these particular statutes. Yet the only statute that may be at issue here is Section 7060.7(b), which suggests the spirit of these statutes is not to permit any landlord to withdraw from the rental market less than half of all units in a single, detached structure.

Plaintiff's Complaint satisfies all service, notice and verification requirements in Section 1166 of the Code of Civil Procedure. In addition, the Complaint lists the reason for the termination - removal of the residence from the rental market- which qualifies as just cause. The Complaint then alleges that Defendant failed to vacate the premises after proper notice of 60 days and despite the fact that the owner waived the Defendant's rent for the last month.

This court doesn't interpret Section 7060.7 of the Government Code to require that an owner, when removing a unit from the rental market, must remove at least half of those units from a particular building. Even assuming that were the case, the residence identified in the Complaint is a single residence. No showing that any further units have been removed would be required.

Thus, the court has considered and rejects the contention that the operative complaint fails to allege adequate compliance with statutory notice requirements. The operative complaint alleges facts from which a trier of fact could find valid service and compliance with statutory notice requirements applicable to an unlawful detainer cause of action for non-payment of rent. See Complaint filed February 14, 2024, ¶¶VII-VIII an

Disposition

Defendant's Demurrer is Overruled.

Court to issue Order.